

NON-DISCLOSURE AGREEMENT (NDA)

This Non-Disclosure Agreement ("Agreement") is made on this ____ day of _____, 20__, at _____ (location).

BETWEEN

Mr./Ms./Company _____, S/o/D/o _____,
residing/located at _____ (hereinafter referred to as the "Disclosing Party")

AND

Mr./Ms./Company _____, S/o/D/o _____,
residing/located at _____ (hereinafter referred to as the "Receiving Party")

WHEREAS

the Disclosing Party may share certain confidential information with the Receiving Party for the purpose of _____
(purpose of disclosure), and it is intended that such information shall remain confidential under the terms and conditions below:

1. Definition of Confidential Information: "Confidential Information" includes all data, documents, materials, business plans, financial information, trade secrets, and/or other proprietary information disclosed, whether in written, oral, or electronic form.

2. Obligations of Receiving Party: The Receiving Party agrees to:

- Maintain confidentiality of all received information.
- Not disclose or transfer Confidential Information to any third party without written consent from the Disclosing Party.
- Use the Confidential Information solely for the intended purpose as described above.

3. Exceptions: Confidential Information shall NOT include information which:

- Was already in the possession of the Receiving Party prior to disclosure.
- Is or becomes publicly available other than through a breach of this Agreement.
- Is lawfully received from a third party without restriction.
- Is independently developed by the Receiving Party without reference to the Confidential Information.

4. Term and Survival: This Agreement shall remain effective for _____ years/months from the date above. The confidentiality obligations shall survive the termination or expiry of this Agreement.

5. Return of Information: Upon the written request of the Disclosing Party or the conclusion of the relationship, the Receiving Party shall promptly return or destroy all received Confidential Information and any copies thereof.

6. No License: No license, ownership, or other rights in the Confidential Information are granted to the Receiving Party under this Agreement.

7. Governing Law and Jurisdiction: This Agreement shall be governed by the laws of India. Any disputes arising out of or relating to this Agreement shall be subject to the exclusive jurisdiction of the courts at _____ (specify location).

IN WITNESS WHEREOF the Parties here to have signed this Agreement on the date and year first above written.

Disclosing Party: _____ **Signature:** _____ **Date:** _____

Receiving Party: _____ **Signature:** _____ **Date:** _____

Witness 1: _____ **Signature:** _____

Address: _____

Witness 2: _____ **Signature:** _____

Address: _____